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Agentic AI and the EU AI Act 101

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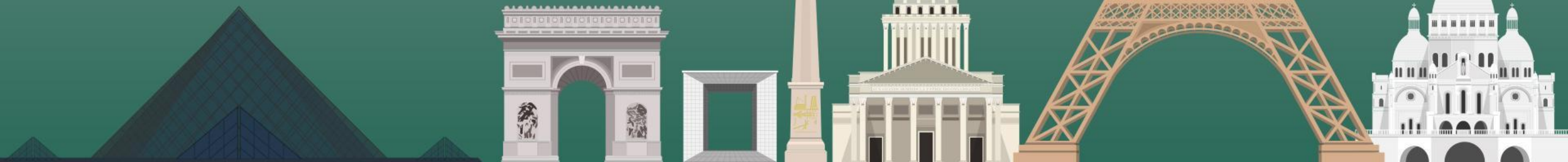
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OpenMined Foundation

“Building the public network for Private Data”

- Free Open Source Software
- PETs framework (FL, DP, etc..)
- Compute to Data solutions
- Pilot projects with partners
(www.openmined.org)

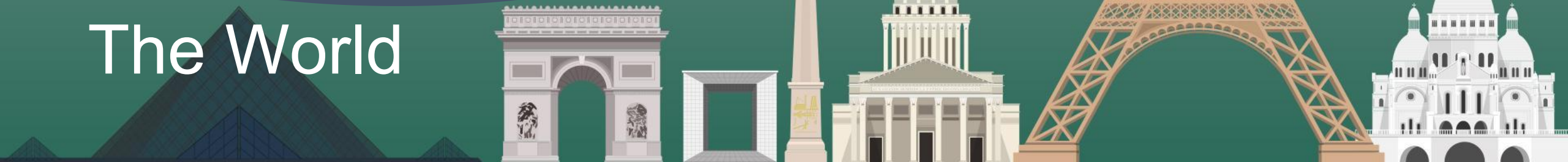


AI agents are “AI systems” in the EU AI Act!

User+Private data $\Leftrightarrow$

Harness+LLM+Tools $\Leftrightarrow$

The World



How is the AI Agent built?

- Does it integrate a GPAI model?
- Has the underlying GPAI model been classified as “with or without systemic risks”?
- Has the GPAI model been substantially modified or fine-tuned?



How is the AI Agent used?

- Does the intended use fall under Art 5 prohibited AI practices?
- Is the agent subject to Article 50 transparency obligations?
- Is the agent classified as high risk AI system under Article 6 and Annex I or II?



Conclusions

- AI agents are classified as AI systems, sometimes GPAI systems, under the EU AI Act.
- Provider and deployer obligations depend on the agent's intended purpose, context, autonomy, and impact.
- Greater agent autonomy (acting without human confirmation) requires more oversight, logging, and accountability.



Thanks!

